Superior Court of the State of California
County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32

Date: August 25, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/mediarelations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at https://www.occourts.org/mediarelations/aci.html.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
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These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	**NAJAFI VS. VINCI** **2025-01451991**	**MOTION TO BE RELIEVED AS COUNSEL** Stacey Joel Safion's Motion to be Relieved as Counsel for Plaintiff David Najafi is DENIED as moot considering the substitution of attorney filed on 5/21/26 substituting Rebekah Thomas as counsel. (ROA 45.)
2.	**LOKES VS. LOUIS** **2023-01367818**	**1. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES** Defendant Karl George Louis' motion to compel a response from plaintiff Samanta Lokes's to Defendant's Supplemental Interrogatories is DENIED. The proof of service shows Defendant served the Supplemental Interrogatories and the instant Motion on Plaintiff who is appearing in *pro per* via email. There is no proof that Plaintiff consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Supplemental Interrogatories and this Motion by electronic mail on Plaintiff was insufficient. Moving Defendant to give notice. **2. MOTION TO COMPEL PRODUCTION** Defendant Karl George Louis' motion to compel a response from Plaintiff Samanta Lokes's to Defendant's Supplemental Request for Production of Documents and Things is DENIED. The proof of service shows Defendant served the Supplemental Request for Production of Documents and Things and the instant Motion on Plaintiff who is appearing in *pro per* via email. There is no proof that Plaintiff consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Supplemental Request for Production of Documents and Things and this Motion by electronic mail on Plaintiff was insufficient. Moving Defendant to give notice.
3.	**FELTON VS. AI'S NEW YORK CAFÉ** **2024-01423563**	**1. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES** Plaintiff Michael Felton's motion to compel defendant Al's New York Café to serve further responses to Special Interrogatories, Set One, Interrogatory Nos. 2, 9, 10, 12, 13, 14, 15, 16, 17, 18, 28, and 35 is GRANTED.

Special Interrogatory Nos. 2, 9, 10 and 16:

Code of Civil Procedure section 2030.220, subdivision (a), requires that answers be “as complete and straightforward as the information reasonably available to the responding party permits.”

Defendant’s response to these interrogatories failed to provide all requested information. Specifically, Interrogatory No. 2 asked for job positions and the dates Plaintiff worked in each; Defendant responded with job titles only, omitting all dates. Similarly, interrogatory Nos. 9, 10, and 16 each required Defendant to identify specific persons by providing, in addition to their names and job titles, complete contact information and dates of employment with Defendant. Defendant responded to each of these interrogatories by stating “Ali Amirghahari, President” but failed to provide the contact information and dates of employment with Defendant.

Therefore, the request to compel a further response to Special Interrogatory Nos. 2, 9, 10 and 16 is GRANTED.

Special Interrogatory Nos. 13, 14, 15, 17 and 18:

Defendant’s response to these interrogatories failed to provide all requested information. In response to each of these interrogatories which asks Defendant to state, identify, or describe facts, reasons, policies, or witness knowledge related to Plaintiff’s termination, Defendant provided an identical boilerplate answer reciting a single fact that when Plaintiff took a vacation in July 2022 and Al filled in as cashier, the cash receipts were higher than when Plaintiff was cashier. Each of the responses also states discovery is continuing. The responses are not complete since they fail to provide all requested information,

Therefore, the request to compel a further response to Special Interrogatory Nos. 13, 14, 15, 17 and 18 is GRANTED.

Special Interrogatory Nos. 12 and 28:

Defendant objected to Interrogatory Nos. 12 and 28 on the grounds that they violate Code of Civil Procedure section 2030.060 as compound, conjunctive, or containing subparts. Although both interrogatories contain subparts, they are logically connected to a single injury and thus permissible. Further, responses were not timely served, as such, Plaintiff waived objections. (Cojocnean Decl., ¶ 4; Exhibit B.)

Therefore, the request to compel a further response to Special Interrogatory Nos. 12 and 28 is GRANTED.

Special Interrogatory No. 35:

Defendant's response labels the answer to Interrogatory No. 35 as "RESPONSE TO SPECIAL INTERROGATORY NO. 19." As such, it is unclear whether the response is to interrogatory No. 35 or 19.

Therefore, the request to compel a further response to Special Interrogatory No. 35 is GRANTED.

Defendant is ORDERED to provide a further response to Interrogatory Nos. 2, 9, 10, 12, 13, 14, 15, 16, 17, 18, 28, and 35 within 20 days of notice of this ruling.

Plaintiff's request for sanctions is granted in the amount of $1,200.00, reflecting three hours of counsel's time at $400/hour, payable within 30 days.

Plaintiff to give notice.

2. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS

Plaintiff Michael Felton's motion to compel defendant Al's New York Café to serve further responses to Requests for Admission, Set One, Request Nos. 4, 5, 6, 7, and 8 is GRANTED.

Defendant objected to each of the Requests at issue in this Motion. However, Defendant failed to serve timely responses and therefore waived all objections. Specifically, Defendant's responses were due on or before August 14, 2025. (Cojocnean Decl., ¶ 2.) On August 14, 2025, defense counsel requested a one-week extension which Plaintiff granted, extending the deadline to August 22, 2025. (Cojocnean Decl., ¶ 3; Exhibit A.) On August 22, 2025, the date responses were due, Defendant's counsel unilaterally requested a further extension to August 25, 2025, without Plaintiff's prior agreement. (Cojocnean Decl., ¶ 3.) Defendant served responses on August 25, 2025—three days after the agreed deadline. (Cojocnean Decl., ¶ 4; Exhibit B.) Therefore, the responses were not timely served and Defendant waived all objections. (Code Civ. Proc., § 2033.280, subd. (a).)

Defendant is ORDERED to provide a further response, without objections, to Request Nos. 4, 5, 6, 7, and 8 within 20 days of notice of this ruling.

Plaintiff's request for sanctions is granted in the amount of $1,200.00, reflecting three hours of counsel's time at $400/hour, payable within 30 days.

Plaintiff to give notice.

4.	**CLIFTON VS. MILLS 2023-01309170**	**MOTION FOR BIFURCATION** The Motion for Bifurcation by defendants Daniel C. Mills, II, M.D. and Aesthetic Plastic Surgical Institute is GRANTED. Defendants move to bifurcate the trial of the statute of limitations defense and trying that issue before liability and damages. The court declines to rule on Plaintiff's objections (ROA 147) as immaterial to the court's ruling. Code of Civil Procedure section 598 provides, in pertinent part: > The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time . . . . Code of Civil Procedure section 597.5 provides: > In an action against a physician or surgeon, dentist, registered nurse, dispensing optician, optometrist, registered physical therapist, podiatrist, licensed psychologist, osteopathic physician and surgeon, chiropractor, clinical laboratory bioanalyst, clinical laboratory technologist, veterinarian, or a licensed hospital as the employer of any such person, based upon the person's alleged professional negligence, or for rendering professional services without consent, or for error or omission in the person's practice, if the answer pleads that the action is barred by the statute of limitations, and if any party so moves or the court upon its own motion requires, the issues raised thereby must be tried separately and before any other issues in the case are tried. If the issue raised by the statute of limitations is finally determined in favor of the plaintiff, the remaining issues shall then be tried. "Separate jury trials are not required by Code of Civil Procedure section 597.5 (*County of Kern, supra,* 82 Cal.App.3d at p. 400, citing *Gonzales v. Nork* (1978) 20 Cal.3d 500, 506-507.) Given the specific and mandatory nature of section 597.5, it is controlling. (See *County of Kern v. Superior Court* (1978) 82 Cal.App.3d 396, 399 ["section 597.5 is mandatory."]; *Thai v.*

		Richmond City Center, L.P. (2022) 86 Cal.App.5th 282, 290 ["[u]nder the well-established rule of statutory construction, a specific statute controls over a general statute covering the same subject."].) Here, Plaintiff has brought a medical malpractice action against a surgeon and his alleged employer/agent. Each Defendant asserts as their 23rd affirmative defense in their respective answers that this action is barred by the statute of limitation. (ROA 55, 99.) They now move for bifurcation of the defense. Generally, a trial court considers the grounds stated in the notice of motion and is not required to consider a ground for relief that the moving party did not raise. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) However, despite Defendants' omission of section 597.5 from their notice of motion, the court may grant relief under that section. (See *Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277-1278 [court had discretion to rule on grounds not stated in motion where no objection and parties had fair opportunity to address issues]; *Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc.* (2020) 56 Cal.App.5th 894, 908-909 [where memorandum of points and authorities made clear the grounds for relief sought, court "should have overlooked" omission of grounds in notice].) Here, Defendants' notice clearly states that they seek bifurcation of the trial and that the motion will be based on the attached memorandum of points and authorities, which in turn specifically states Defendants seek bifurcation of the statute of limitations defense to be tried first. Thus, Plaintiff had a fair opportunity to address the issue and, in fact, did so. (See Opp., pp. 6:18-7:3, 7:22-8:5, 9:17-10:6.) The motion is granted. Defendants' statute of limitations defense will be tried in the first phase of the trial. If Plaintiff prevails, liability and damages will be tried in the second phase before the same jury.
5.	**KIM VS. TRAN** **2026-01566561**	**MOTION TO CONSOLIDATE** Plaintiff Harinne Kim's Motion to Consolidate is GRANTED. The Court ORDERS the case numbered 30-2026-01566561-CU-OR-CJC consolidated with this case, for all purposes. Ordinarily the only triable issue in an unlawful detainer proceeding is the right to possession, along with any incidental damages that result from the property's unlawful detention. (*Larson v. City and County of San Francisco* (2011) 192 Cal.App.4th 1263, 1297.) However, when allegations in the pending unlawful detainer and unlimited civil actions demonstrate that the unlawful detainer plaintiff's title might be insufficient to justify relief, and that the unlawful detainer defendant might be entitled to quiet title to the disputed property, a trial court should consolidate the two actions. (*Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367, 385; *accord*

		Berry v. Society of St. Pius X (1999) 69 Cal. App. 4th 354, 364; *Mehr v. Superior Court* (1983) 139 Cal. App. 3d 1044, 1047-50; *Asuncion v. Superior Court* (1980) 108 Cal. App. 3d 141, 147.) Defendant cites to *Coyne v. De Leo* (2018) 26 Cal.App.5th 801, 818-819, to support his argument that title of the tenant can be adjudicated in an unlawful detainer proceeding, thus, it need not be consolidated with this case. However, as stated in *Martin-Bragg*: "When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions. If it does neither and instead tries the issue of title under the summary procedures that constrain unlawful detainer proceedings, the parties' right to a full trial of the issue of title may be unfairly expedited and limited. If complex issues of title are tried in the unlawful detainer proceeding, the proceeding loses its summary character; defects in the plaintiff's title 'are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.' " (*Martin-Bragg, supra*, 219 Cal. App. 4th 367, 385.) Here, the issues of title are clearly complicated with Defendant asserting the certain text messages were faked and the doctrine of unclean hands. Additionally, Plaintiff claims title through an oral agreement. Resolving all these issues in a summary proceeding would be prejudicial against Plaintiff. Defendant concedes in his opposition the issue of title is too complex for an unlawful detainer's summary proceeding. (Opp., p. 9 ["Consolidating the two would not simplify anything; it would import the very complexity that the summary UD procedure exists to keep out"].) However, contrary to Defendant's assertion, the complexity of an issue of title does not allow the party to proceed with an unlawful detainer action before the question of title is determined.
6.	**SANDOVAL VS. LOS ALAMITOS UNIFIED SCHOOL DISTRICT 2022-01294532**	**MOTION FOR DISCOVERY PROTECTIVE ORDERS** Plaintiffs' Motion for Discovery Protective Order and Extension of Time to Respond is DENIED in part and GRANTED in part. Plaintiffs Emma Sandoval, through her guardian ad litem Rachel Sandoval, and Julia Johnson, through her guardian ad litem Suzanne Johnson, move for a protective order limiting and/or narrowing the first set of written discovery requests propounded by Defendant Pali Institute Inc., and for an order that Plaintiffs may produce certain information designated as "Confidential – Attorneys' Eyes Only." <u>Legal Standard</u> Code of Civil Procedure Section 2017.020(a) provides: "The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the

		likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person." The relevant discovery statutes (which are nearly identical) also provide that "[t]he court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., §§ 2025.420(b), 2030.090(b)(6), 2031.060(b)(5), 2033.080(b)(4).) The burden is on the party seeking the protective order to show "good cause" for whatever order is sought. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1145.) "The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order." (*Goodman v. Citizens Life & Cas. Ins. Co.* (1967) 253 Cal.App.2d 807, 819.) Proof on the question of good cause is presented through declarations and counter-declarations. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 389.) Any motion for protective order "shall be" accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2017.020(a).) Section 2016.040, in turn, requires a supporting meet and confer declaration to "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." "Civil discovery is intended to operate with a minimum of judicial intervention. [I]t is a central precept of the Civil Discovery Act . . . that discovery be essentially self-executing[.] [Citations]." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) To that end, a motion to compel further responses must attach a meet and confer declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2030.310(b), 2031.310(b)(2), 2033.290(b)(1).) The meet and confer requirement is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . . This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016 [quoting *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435] [internal quotations and citations omitted].) There must be a serious effort at negotiation and informal resolution. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) "[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Ibid.*) The particular level of effort required in each case depends on the

circumstances including the amount of discovery propounded, the time available to confer before the motion filing deadline, and the extent to which a party was complicit in the lapse of available time. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.)

Plaintiffs' Request to Limit Discovery Requests

Plaintiffs request this court limit or strike over 100 discovery requests per plaintiff, including Form Interrogatory Nos. 2.3, 2.4, 2.6, 2.8, 2.13, 4.1, 4.2, 7.1, 7.2, 7.3, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 10.1, 10.2, 10.3. 11.2; Special interrogatories Nos. 1-8, 11-18, 26-27, 39, 46-49; RFA Nos. 24-29, 41-50; and RFP Nos. 10, 14, 16-21, 25-28, 35-40, 42-49, 52-59, and 61-69. (Mot. at 8:16-9:7.)

On 04/08/2026, Defendant granted Plaintiffs an extension to 04/24/2026 to respond to the written discovery requests. Two days before Plaintiffs' responses were due, Plaintiffs sent their first meet and confer correspondence requesting that Defendant Pali withdraw and/or limit the challenged discovery requests, which account for nearly half of all discovery propounded. (Pauly Decl., Ex. S at p. 5.) Though Plaintiffs ostensibly provided some limited time to respond, Plaintiffs simultaneously represented their *ex parte* application and Motion for Protective Order would be "filed today" (i.e., before the deadline Plaintiffs had provided Defendant to respond). Plaintiffs, in fact, filed the motion a few hours later that same day. Plaintiffs' conduct does not constitute a reasonable or good faith attempt to informally resolve the issues presented in the meet and confer letter—and ultimately, this motion.

To the extent Plaintiffs argue on reply that Defendant Pali was on notice of the relief requested here because Plaintiffs had filed an earlier *ex parte* application on 04/17/2026, Plaintiffs cite no authority providing that a responding party's knowledge of the discovery dispute excuses the moving party from their statutory obligation to meet and confer, and this court is aware of none.

Although not dispositive, the court also notes Plaintiffs did not file a separate statement setting forth the particular discovery requests Plaintiffs argue are outside the scope of discovery and/or are unduly burdensome. (*See* Cal. Rules of Court, Rule 3.1345(a).)

For these reasons, the court DENIES the motion for protective order to the extent Plaintiffs request the court limit or narrow the scope of the discovery propounded.

Private Medical and Personal Information

Plaintiffs request this court permit materials produced under the medical, mental health or diary/journal requests be designated as "Confidential – Attorneys' Eyes only" and used solely in this action.

Plaintiffs did not meaningfully meet and confer on this issue prior to

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<tr><td></td><td></td><td>filing the motion. Plaintiffs addressed the issue for the first time on 04/22/2026, hours before filing this motion. In addition, Plaintiffs do not show that any private information requested is on par with trade secret information, such that it should be limited to attorneys’ eyes only.

Because counsel’s actions cannot waive the clients’ privacy rights, the court DENIES this request <u>without prejudice</u> to the parties’ submitting a stipulated protective order pertaining to the treatment and maintenance of confidential information.

<u>Extension to Respond</u>

Plaintiffs request the court extend to 06/10/2026 the deadline to respond to Defendant Pali’s first set of written discovery.

The court finds good cause to extend the deadline for Plaintiffs’ request, given the number of requests propounded.

No later than 09/25/2026, Plaintiff Sandoval and Plaintiff Johnson SHALL provide verified, code-compliant responses to Form Interrogatories (Set One), Special Interrogatories (Set One), RFAs (Set One), and RFPs (Set One) propounded by Defendant Pali.

<u>Sanctions</u>

Defendant Pali request monetary sanctions against Plaintiffs’ counsel Lex Rex Institute, Alexander Haberbush, and Deborah Pauly in the amount of $12,000.

The court finds the circumstances make the imposition of monetary sanctions unjust and on that basis, DENIES Defendant Pali’s request for monetary sanctions. (See Code Civ. Proc., § 2017.020(b).)

Plaintiffs to give notice.</td></tr>
<tr><td>7.</td><td>LEOS VS. LEE
2023-01326455</td><td>MOTION TO REQUIRE PLAINTIFF TO FILE AN UNDERTAKING

Defendant Joanna Cloonan’s Motion for an Order Requiring Plaintiff Joey Leos to Post an Undertaking is DENIED.

The Court notes there is no proof of service attached to Plaintiff’s opposition. Plaintiff is reminded to file a proof of service with any supporting or opposing papers.

<u>Objections and Request for Judicial Notice</u>

Plaintiff’s objection to Laskey’s Declaration are overruled.</td></tr>
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		Plaintiff's objections to Cloonan's request for judicial notice are sustained as to the truth of the matters asserted in the press release but not as to the fact the Orange County District Attorney's Office issued the press release. The Court can take judicial notice of the "existence, content, and authenticity" of the press release, however, it is inadmissible for "the truth of all matters stated therein." (*People v. Castillo* (2010) 49 Cal.4th 145, 158, (cleaned up).) Additionally, the subject matter of the press release is not proper under Subdivision (h) either. "Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter. The statute has also been used on demurrer to take judicial notice of facts commonly known in a community such as ownership, easements and control over land and the history and operation of a local museum." (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 (cleaned up).) Accordingly, Cloonan's request for judicial notice of the Orange County District Attorney's Office press release is granted only as to the fact the press release exists and its contents, however, not as to the truth of the matters stated therein. <u>Merits</u> *Residency* Plaintiff did not oppose that he is not a California resident. *Reasonable Possibility of Prevailing* The moving party has "the burden of proof to show entitlement to such relief." (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 432.) Defendants "were not required to show that there was no possibility that [plaintiffs] could win at trial, but only that it was *reasonably possible* that [defendants] would win." (*Baltayan v. Estate of Getemyan, supra,* 90 Cal.App.4th at 1432 [emphasis in original].) Evidence needed for an undertaking is less than that needed for summary judgment or even a special motion to strike; rather, to satisfy the requirements of section 1030, defendant must produce sufficient evidence to demonstrate they have a reasonable possibility of winning, but no more. (*Baltayan v. Getemyan* (2001) 90 Cal. App. 4th 1427, 1442.) Here, Cloonan's only evidence in support of her defense of a superseding criminal act by Eriz is not a proper subject of judicial notice. Thus, Cloonan has failed to meet her low burden of evidence

		by failing to submit any admissible evidence in support as to the first cause of action. As to 3rd and 4th causes of action, Cloonan submits no evidence and only argues they fail as a matter of law. “There are several potential bases for a cause of action seeking restitution. For example, restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. [Citations.] Alternatively, restitution may be awarded where the defendant obtained a benefit from the plaintiff by fraud, duress, conversion, or similar conduct. In such cases, the plaintiff may choose not to sue in tort, but instead to seek restitution on a quasi-contract theory.... [Citations.] In such cases, where appropriate, the law will imply a contract (or rather, a quasi-contract), without regard to the parties' intent, in order to avoid unjust enrichment.” (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 388.) “Under the law of restitution, an individual is required to make restitution if he or she is unjustly enriched at the expense of another. A person is enriched if the person receives a benefit at another's expense. However, the fact that one person benefits another is not, by itself, sufficient to require restitution. The person receiving the benefit is required to make restitution only if the circumstances are such that, as between the two individuals, it is *unjust* for the person to retain it.” (*Id*. at 389 [emphasis in original] (cleaned up).) “In keeping with the doctrine's focus on the *unjust* nature of the enrichment, it is well settled that restitution will be denied where application of the doctrine would involve a violation or frustration of the law or opposition to public policy. Thus, determining whether it is unjust for a person to retain a benefit may involve policy considerations. For example, if a person receives a benefit because of another's mistake, policy may dictate that the person making the mistake assumes the risk of the error. Moreover, a person otherwise entitled to restitution may lose that entitlement if restitution would seriously impair the protection intended to be afforded by common law or by statute to persons in the position of the transferee or of the beneficiary, or to other persons. (*Ibid*. [emphasis in original].) Plaintiff claims Cloonan, Lacy, and himself agreed to create a joint GoFundMe campaign “in order to recover money for the loss and death of AIDEN, to provide some monetary compensation to pay for the costs of AIDEN’s funeral expenses and for emotional injuries which caused pain and suffering.” (Compl., ¶ 52.) Plaintiff also alleges Lacy agreed to act on behalf of all parties. (Compl., ¶ 53.) Defendant claims the cause of action fails against her because the Complaint does not allege she obtained the benefit by “fraud, duress, conversion, or similar wrongful conduct.” (Mot., p. 7.) However, Plaintiff claims Cloonan misappropriated the GoFundMe

		funds. (Compl., ¶ 58.) Thus, Cloonan has failed to demonstrate Plaintiff's claims are barred by law and, thus, has failed to show a reasonable possibility of prevailing in the lawsuit. Accordingly, the Motion is denied.
8.	**DAILY REALTY PARTNERS, LP VS. KOPPI 2025-01517126**	**1. DEMURRER TO AMENDED COMPLAINT** Defendant Megan Koppi as Trustee of The MMD Trust, established July 14, 2015's Demurrer to Plaintiffs Daily Realty Partners, LP and Daily Downey Avenue, LLC's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. <u>First Cause of Action for Breach of Written Contract – DDA Agreement</u> "To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant's breach and resulting damage." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307 [citation omitted].) Plaintiffs allege: - Defendants are parties to a written operating agreement dated 12/21/17, which governs DDA (the DDA Agreement). (FAC ¶ 47.) - DDA has fulfilled all obligations and conditions which were required to perform under the DDA Agreement, except for those obligations which were excused. (FAC ¶ 49.) - Section 6.6 of the DDA agreement provides that, "[i]n accordance with the [California Revised Uniform Limited Liability Company] Act, a Member may, under certain circumstances, be required to return the Company, for the benefit of the Company's creditors, amounts previously distributed to the Member." (FAC ¶ 50.) - Defendants breached the Agreement by refusing to return a portion of the February 2023 distribution to Defendants to cover their pro rata share of DDA's legal expenses owed to DDA's creditors. (FAC ¶ 51.) - As a direct and proximate result of Defendants' breaches of contract, DDA has been damaged in the amount to be determined at trial. (FAC ¶ 52.) These allegations are sufficient at the pleading stage. To the extent Defendant contends the DDA does not impose a repayment obligation, that analysis is not appropriate for purposes of demurrer. The Court OVERRULES the demurrer to the first cause of action.

		<u>Second Cause of Action for Breach of Implied Contract – Letter Agreement</u> "A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct." (*Yari v. Producers Guild of America, Inc*. (2008) 161 Cal.App.4th 172, 182.) Plaintiffs allege: - The 2/8/23 letter accompanying the distribution to Defendants set forth terms and conditions for the distribution, expressly stating Defendants would be invoiced for a pro rata share of legal expenses that exceeded the amounts already held back from Plaintiffs' owners. (FAC ¶ 54.) - The parties' words (i.e., the letter) and conduct (e.g., Defendants accepting and depositing the distribution without objection) created a contract (the Letter Agreement) under which Koppi was required to return from the February 2023 distribution to her/MMD the money necessary to cover a pro rata share of Plaintiffs' legal expenses. (FAC ¶ 55.) - Plaintiffs did all, or substantially all of, the significant acts the implied contract/Letter Agreement required. (FAC ¶ 56.) - Defendants breached the Letter Agreement by refusing to return a portion of the February 2023 distribution to Defendants to cover their pro rata share of Plaintiffs' legal expenses. (FAC ¶ 57.) - As a direct and proximate result of Defendants' breach of the implied contract/Letter Agreement, Plaintiffs have been damaged in an amount to be proved at trial. (FAC ¶ 58.) These allegations are sufficient at the pleading stage. Moreover, redundancy of a cause of action is not grounds for sustaining a demurrer. (*See Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 889-890.) The Court OVERRULES the demurrer to the second cause of action. <u>Third Cause of Action Promissory Estoppel</u> "The elements of a cause of action for promissory estoppel are (1) a promise, (2) the reasonable expectation by the promisor that the promise will induce reliance or forbearance, (3) actual reliance or forbearance, and (4) the avoidance of injustice by enforcing the promise." (*Fleet v. Bank of America N.A.* (2014) 229 Cal.App.4th 1403, 1412.) "The vital principle is that he who by his language or conduct leads another to do what he would not otherwise have done shall not subject such person to loss or injury by disappointing the

		expectations upon which he acted." (*Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 945 [citation omitted].) Plaintiffs allege: - Defendants made promises and representations to Plaintiffs that, if Plaintiffs distributed sales proceeds to Defendants, Defendants would return a portion of that distribution to cover Defendants' pro rata share of Plaintiffs' legal expenses. (FAC ¶ 60.) - Plaintiffs reasonably and justifiably relied on Defendants' promises, and Defendants intended Plaintiffs to rely on Defendants' promises. (FAC ¶ 61.) - Defendants did not intend to ever return any of the distribution to Plaintiffs when they made representations to Plaintiffs to the contrary. (FAC ¶ 62.) - Defendants did not perform the promised act and have not returned any of the February 2023 distribution to Plaintiffs. (FAC ¶ 63.) - As a direct and proximate result of Defendants' failure to act as promised, Plaintiffs have been damaged in an amount to be proved at trial. (FAC ¶ 64.) - Plaintiffs' reliance on Defendants' representations was a substantial factor in the harm that Plaintiffs suffered. (FAC ¶ 65.) These allegations are sufficient at the pleading stage. The Court OVERRULES the demurrer to the third cause of action <u>Fourth Cause of Action for Breach of Implied Covenant of Good Faith and Fair Dealing</u> "The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation." (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031 [citation omitted].) "The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose." (*Ibid*. [citation omitted].) "In essence, the covenant is implied as a *supplement* to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract." (*Id.* at pp. 1031-1032 [citation omitted].) "There is no obligation to deal fairly or in good faith absent an existing contract." (*Id*. at p. 1032 [citations omitted].) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no

additional claim is actually stated." (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395).

Plaintiffs allege:

- DRP is governed by an agreement of limited partnership (the DRP Agreement). (FAC ¶ 67.)
- The DRP Agreement, the DDA Agreement, and/or the Letter Agreement are binding and enforceable agreements. (FAC ¶ 68.)
- Plaintiffs did all, or substantially all of, the significant acts that the DRP Agreement, the DDA Agreement, and/or the Letter Agreement required. (FAC ¶ 69.)
- The DRP Agreement, the DDA Agreement, and/or the Letter Agreement each included an implied covenant of good faith and fair dealing that required the parties not to do anything that would have the effect of impairing, destroying, or injuring the rights of the other party to receive the benefits of their agreement. The implied covenant further required that each party would do all things reasonably contemplated by the terms of the DRP Agreement, the DDA Agreement, and/or the Letter Agreement to accomplish each agreement's purposes. (FAC ¶ 70.)
- As detailed above, while the other owners of DRP and DDA have returned portions of their distributions to cover their pro rata shares of Plaintiffs' legal expenses, Defendants have refused to do the same—accepting an outsized distribution and daring Plaintiffs to force them to return any of it. (FAC ¶ 71.)
- Defendants' actions have prevented Plaintiffs from receiving the benefits of the DRP Agreement, the DDA Agreement, and/or the Letter Agreement—leaving them without the funds necessary to cover their ever-mounting legal expenses despite defeating each of Defendants' claims against them to date. (FAC ¶ 72.)

As such, Plaintiffs essentially allege Defendants breached their agreements with them by failing to pay their pro rata share of legal expenses and seek the same damages sought by their cause of action for breach of contract.

The Court SUSTAINS the demurrer as to the fourth cause of action with leave to amend.

<u>Fifth Cause of Action for Violation of Corporations Code § 15905.08 et seq.</u>

Section 15905.08, subdivision (b) prohibits a limited partnership from making a distribution if, after the distribution is made, the partnership would be unable to pay its debts and obligations as they become due in the ordinary course of its activities.

		Section 15905.09, subdivision (b) provides, "A partner or transferee that received a distribution knowing that the distribution to that partner or transferee was made in violation of Section 15905.08 is personally liable to the limited partnership but only to the extent that the distribution received by the partner or transferee exceeded the amount that could have been properly paid under Section 15905.08." Plaintiffs allege: - In November 2022, Petit, who managed DRP and DDA sent Koppi a letter informing her of his estimate of $400,000 that would need to be set aside for legal expenses. (FAC ¶ 35.) - On 2/8/23, Petit sent Koppi a letter and a cashier's check. The letter stated the money was MMD's share of net sales proceeds less her share of the lawsuit defense fund and stated, "Should the defense of the lawsuit require more than this holdback, the business entities will send you an invoice." (FAC ¶ 36.) Plaintiffs allege Koppi was informed of an estimate for legal expenses and that at the time of distribution was told she was being paid her share of the proceeds less the legal defense fund and would be sent an invoice "[s]hould the defense of the lawsuit require more." As such, Plaintiffs do not allege sufficient facts demonstrating Defendants received the distribution knowing it was in violation of section 15905.08. The Court SUSTAINS the demurrer as to the fifth cause of action with leave to amend. <u>Sixth Cause of Action for Violation of Corporations Code § 17704.05 and 17704.06</u> Corporations Code section 17704.05 subdivision (b) prohibits a limited liability company from making a distribution if, after the distribution is made, the limited liability company would be unable to pay its debts and obligations as they become due in the ordinary course of its activities. Corporations Code section 17704.06, subdivision (c) provides, "A person that receives a distribution knowing that the distribution to that person was made in violation of Section 17704.05 is personally liable to the limited liability company but only to the extent that the distribution received by the person exceeded the amount that could have been properly paid under Section 17704.05." The language of these statutes tracks Corporations Code sections 15905.08 and 15905.09 but relate to limited liability companies. As such, the Court applies the analysis set forth above with respect to the fifth cause of action.

The Court SUSTAINS the demurrer as to the sixth cause of action with leave to amend.

<u>Seventh Cause of Action for Declaratory Relief</u>

To qualify for declaratory relief, an action must present two essential elements: 1) a proper subject of declaratory relief, and 2) an actual controversy involving justiciable questions relating to the rights of obligations of a party. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; Code Civ. Proc. § 1060.)

The "proper subjects" of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes, and include contracts and written instruments and statutory interpretation. (*See Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410; *Doan v. State Farm General Ins. Co.* (2011) 195 Cal.App.4th 1082, 1095.)

Plaintiffs allege a controversy has arisen as to "whether Defendants are required to return any portion of the February 2023 distribution under the DRP Agreement, the DDA Agreement, and/or the Letter Agreement to the extent needed to cover Plaintiffs' accruing litigation expenses." (FAC ¶ 85.)

As such, Plaintiffs "desire a judicial determination of the parties' rights and obligations under the DRP Agreement; the DDA Agreement; the Letter Agreement; and/or Corporations Code sections 15905.08 et seq., 17704.05, and 17704.06. (FAC ¶ 86.)

This is sufficient at the pleading stage.

The Court OVERRULES the demurrer as to the seventh cause of action.

2. MOTION TO STRIKE PORTIONS OF COMPLAINT

Defendant Megan Koppi as Trustee of The MMD Trust, established July 14, 2015's Motion to Strike Portions of Plaintiffs Daily Realty Partners, LP and Daily Downey Avenue, LLC's First Amended Complaint is DENIED.

Code of Civil Procedure section 436, subdivision (a), provides the court may strike "any irrelevant, false, or improper matter" in a pleading.

Defendants move to strike various allegations in the FAC on the ground they are improper, irrelevant and misleading.

The allegations at issue relate to background and context for the action as well as the elements necessary to allege various causes of

		action. The Court does not find them to be so improper, irrelevant and misleading as to be stricken. Defendant also moves to strike Plaintiffs' prayer for attorneys' fees on the ground Plaintiffs fail to allege any statute or contractual provision entitling Plaintiffs to attorneys' fees. While Plaintiffs contend both the DDA and DRP Agreements, attached to the complaint and incorporated by reference, include attorneys' fee provision, Defendant contends "entitlement depends on the claims and contractual provisions at issue." (Reply at 10:10.). To the extent Defendants contend Plaintiffs have not demonstrated the agreements establish Plaintiffs are entitled to attorneys' fees in this action, that analysis is not appropriate for purposes of a motion to strike.